

Court No. - 39

Case :- WRIT - C No. - 8151 of 2025

Petitioner :- Imami

Respondent :- The Managing Director, Paschimanchal Vidyut Vitran Nigam Limited, Victoria Park, And Another

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Shri Rakesh Kumar Mishra, learned counsel for the petitioner and Shri Ishan Mehrotra, Advocate holding brief of Shri Pranjal Mehrotra, learned counsel for the Electricity Department.
2. The petitioner is essentially aggrieved by the bill generated by the Electricity Department of Rs. 1,86,464/- which is being recovered from the petitioner by means of demand notice dated 01.08.2024.
3. Learned counsel for the petitioner states that bill was wrongly raised.
4. Learned counsel appearing for the Electricity Department however states that the petitioner has an efficacious alternative remedy of approaching the relevant Executive Engineer under Clause 6.5 of the Uttar Pradesh Electricity Code, 2005.
5. Having heard the learned counsel for the parties, we are of the view that if the petitioner was aggrieved of the bill which was generated by the Electricity Department on the basis of which the recovery was being made, the petitioner can always approach the Executive Engineer concerned.
6. Under such circumstances, we are providing that if the

petitioner approaches the Electricity Department within a period of ten days from today under Clause 6.5 of the Electricity Supply Code, 2005 and raises an objection, then the objection shall be decided within a period of one month.

7. For a period of two months, no recovery be done from the petitioner.

8. It may be clarified that we have not decided the case on merits.

9. With these observations, the writ petition stands **disposed of**.

Order Date :- 20.3.2025

Karan

(Dr. Y.K. Srivastava, J.)

(Siddhartha Varma,J.)